

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

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OCSAR WHITE , and MALCOLM WHITE ,

**Plaintiff Designates Queens County
as the place of trial. The basis of
venue is plaintiff's residence**

Plaintiffs,

Index No.:

-against

SUMMONS

**THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER
JASON ZUMMO , AND POLICE OFFICER
JERONNIE GLANVILLE,**

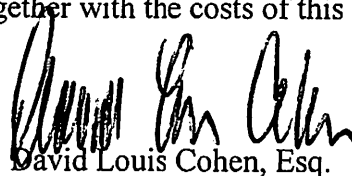
**Plaintiff's Residence:
1560 150th Street
Whitestone, New York 11357**

Defendants.
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TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, on the Plaintiff's Attorney within twenty (20) days after service of this summons and verified complaint, exclusive of the date of service (or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York; and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint, together with the costs of this action.

Dated: Kew Gardens, New York
February 19, 2013


David Louis Cohen, Esq.

Attorney for Plaintiffs
125-10 Queens Blvd - Suite 5
Kew Gardens, New York 11415

Defendant's Addresses

City of New York
I Centre Street
New York, New York 10007

NYPD
One Police Plaza
New York, New York 10038

Jason Zummo
One Police Plaza
New York, New York 10038

Jeronnice Glanville
One Police Plaza
New York, New York 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

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OCSAR WHITE , and MALCOLM WHITE ,

Plaintiffs,

Index No.:

-against-

VERIFIED COMPLAINT

**THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER
JASON ZUMMO , AND POLICE OFFICER
JERONNIE GLANVILLE,**

Defendants.

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The Plaintiffs, **OSCAR WHITE and MALCOLM WHITE**, by their attorney **DAVID LOUIS COHEN, ESQ.**, as and for their Verified Complaint against the defendants respectfully alleges as follows:

1. At all times hereinafter mentioned, **OSCAR WHITE and MALCOLM WHITE**, resided in the County of Queens, City and State of New York.
2. That the defendant, **CITY OF NEW YORK**, at all times hereinafter mentioned was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York with a principal place of business in the County of New York, City and State of New York.
3. That the **NEW YORK CITY POLICE DEPARTMENT** is a duly constituted municipal agency of the defendant, **CITY OF NEW YORK**, and at all times hereinafter mentioned, was and still is under the supervision and control of the **CITY OF NEW YORK**.
4. That at all times hereinafter mentioned **Jeronnie Glanville and Jason Zummo** were police officers acting in their official capacity and employees of the City of New York and the Police Department of the City of New York.

5. That at all times hereinafter mentioned, the Plaintiffs maintained a business, consisting of a recording studio facility and a clothing manufacturing facility, located at 140-16 184th Street, County of Queens, City and State of New York.

6. That a Notice of Claim was duly served upon the defendant, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, within ninety (90) days after the accrual of the plaintiffs' cause of action.

7. That more than thirty (30) days have elapsed since the service of the said Notice of Claim upon the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

8. That the defendant, THE CITY OF NEW YORK, and its Comptroller, have failed, neglected and refused to pay, settle, compromise or adjust the claim of the plaintiff herein.

9. This action has been commenced within one (1) year and ninety (90) days after the cause of action of the plaintiffs accrued and the plaintiffs has complied with all the conditions precedent to the commencement of these actions.

10. That the amount of damages sought in this action exceeds the jurisdictional limits of any and all lower courts which would otherwise have jurisdiction.

AS AND FOR A FIRST CAUSE OF ACTION

11. That on or about November 26, 2011, plaintiffs maintained a lawful legal business and at no time on that date were the plaintiffs or any of their employees engaging in any illegal activities at 140-16 184th Street.

12. That without a Court authorized warrant, probable cause, or exigent circumstances, members of the New York city Police Department, including but not limited to Police Officer Jason Zummo and Police Officer Jeronnie Glanville forced their way inside 140-16 184th Street, in the County of Queens, City and State of New York

13. That upon the police officers, including but not limited to Jason Zummo and Jeronnie Glanville, gaining illegal entry in to the location of 140-16 184th Street, County of Queens, City and State of New York, and without just cause, or legal justification , they proceeded to damage personal property, business equipment and computer equipment belonging to the plaintiffs.

14. As a result of the foregoing, the plaintiffs have lost use of the damaged equipment, lost valuable “music beats” stored on the computers, and lost valuable personal property. **That the improper conduct of the Defendants has caused damage to the Plaintiffs in the amount of ONE MILLION (\$1,000,000.00) DOLLARS.**

AS AND FOR A SECOND CAUSE OF ACTION

15. The plaintiff repeats, reiterates, reaffirms and realleges paragraphs 1 through 14 as if they were repeated in full.

16. That on November 26, 2011, the plaintiffs were placed under arrest by Police Officer Jeronnie Glanville, Police Officer Jason Zummo and other unknown members of the New York City Police Department, and accused of the crime of Unlawful Possession of Marijuana.

17. That the basis for this arrest was the illegal entry into the premises, 140-16 184 Street, County of Queens, City and Sate of New York. The Defendant Police Officers and other members of the New York City Police Department, knew or should have known that there was not a legal basis to enter the premises and place the plaintiffs under arrest.

18. That this illegal arrest of the plaintiffs was caused and due solely through and by reason of the intentional maliciousness, negligence, carelessness, and recklessness of the defendants, their agents, servants and/or employees.

19. As a result thereof, plaintiffs, continue to suffer great psychological pain and remain otherwise damaged in the sum of **ONE MILLION (\$1,000,000.00) DOLLARS**.

WHEREFORE, plaintiffs, OSCAR WHITE and MALCOLM WHITE demand judgment against the defendants in the sum of **ONE MILLION (\$1,000,000.00) DOLLARS** in the First Cause of Action and **ONE MILLION (\$1,000,000.00) DOLLARS**, in the Second Cause of Action.

Dated: Kew Gardens, New York
February 19, 2012

Yours, etc.

DAVID LOUIS COHEN, ESQ.
Attorney for Plaintiff
125-10 Queens Boulevard
Suite 5
Kew Gardens, New York 11415
(718) 793-1553

STATE OF NEW YORK:

SS.:

COUNTY OF QUEENS :

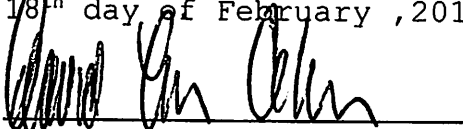
OSCAR WHITE, being duly sworn deposes and says:

I am one of the Plaintiffs in this matter and have read the annexed Complaint, know the contents thereof and the same are true to my knowledge, except those matter which are stated upon information and belief, and as to those matters I believe them to be true.



OSCAR WHITE

SWORN to before me this
18th day of February ,2013


NOTARY

DAVID LOUIS COHEN
Notary Public, State of New York
No.02CO4871144
Qualified in Queens County
Commission Expires August 18, 2014

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Plaintiffs,

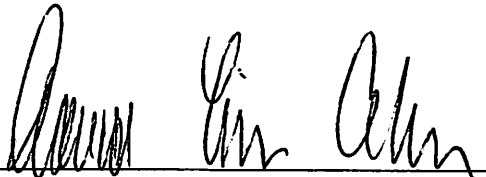
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THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER
JASON ZUMMO , AND POLICE OFFICER
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Defendants.
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SUMMONS AND VERIFIED COMPLAINT

*David Louis Cohen, Esq.
Attorney for Plaintiffs
125-10 Queens Boulevard
Suite 5
Kew Gardens, New York 11415
718-793-1553
David@davidlouiscohenlaw.com*



DAVID LOUIS COHEN, ESQ.
Attorney Certification Pursuant to Court Rule
Section 130-1.1-a